

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Squad #14	CCRB Case #: 201602672	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 03/23/2016 7:00 PM	Location of Incident: Williams Avenue and Pitkin Avenue	18 Mo. SOL 9/23/2017	Precinct: 75
Date/Time CV Reported Wed, 03/30/2016 12:10 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/30/2016 12:10 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Terrance Lloyd	27336	950760	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Lee	28870	938833	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Terrance Lloyd	Abuse: Police Officer Terrance Lloyd stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Terrance Lloyd	Abuse: Police Officer Terrance Lloyd searched § 87(2)(b)	B . Exonerated
C . POM Terrance Lloyd	Abuse: Police Officer Terrance Lloyd frisked § 87(2)(b)	C . Substantiated

Case Summary

On March 30, 2016, § 87(2)(b) filed this complaint with the CCRB via phone.

On March 23, 2016, at approximately 7:00 p.m., at Williams Avenue and Pitkin Avenue in Brooklyn, § 87(2)(b)'s vehicle was stopped by PO Terrance Lloyd of the 75th Precinct (**Allegation A**). PO Lloyd removed § 87(2)(b) from his vehicle and allegedly asked him to empty his pockets (**Allegation B**). PO Lloyd also frisked § 87(2)(b) (**Allegation C**). § 87(2)(b) had a passenger in his vehicle, § 87(2)(b) who was also summonsed for § 87(2)(b).

There was no video footage for this case.

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b). As of June 13, 2016, § 87(2)(b) has not filed a lawsuit (BR 01). § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- Since 2002, this is the sixth complaint § 87(2)(b) has filed with the CCRB. § 87(2)(b)
- PO Lloyd has been a member of the NYPD for 4 years and has been the subject of 10 previous allegations, involving 5 cases, none of which were substantiated. Four allegations have not been investigated due to truncating as complainant uncooperative and another allegation was mediated, and therefore not investigated. In case 201310051, an allegation of refusal to obtain medical treatment was unsubstantiated. In case 201502435, two allegations of force were unfounded and allegations of threat of arrest and stop were exonerated. § 87(2)(g)

Potential Issues

§ 87(2)(b) was contacted several times throughout the investigation. However, during each contact attempt, nothing more than a partial phone statement was able to be obtained from her. § 87(2)(b) consistently refused to provide a statement to the undersigned investigator at the time of various phone calls and would request to be called back, and would then not answer the subsequent phone calls from the investigator.

Findings and Recommendations

Allegation A - Abuse of Authority: Police Officer Terrance Lloyd stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Lloyd stopped § 87(2)(b)'s vehicle.

§ 87(2)(b) stated that when he turned onto Pitkin Avenue, his friend § 87(2)(b) identified by the investigation as § 87(2)(b) waved him down and asked for a ride. § 87(2)(b) agreed and drove for approximately 15-20 feet, when he heard sirens and a police car pulled him over. § 87(2)(b) denied that he had committed any traffic violations. § 87(2)(b) asked PO Lloyd what he was being stopped for and PO Lloyd told him for solicitation and due to him picking up § 87(2)(b) (BR 04).

§ 87(2)(b) stated that her friend, she did not remember his name, picked her up at Pitkin Avenue and Williams Avenue and was going to drop her off at home. Two officers then stopped the vehicle and told them they were stopped for loitering (BR 05).

PO Lloyd stated that he was performing enforcement patrol in the area of Pitkin Avenue and Williams Avenue. The area has a condition of prostitution and PO Lloyd was observing the known prostitutes in the area. PO Lloyd observed a prostitute named § 87(2)(b) identified by the investigation as § 87(2)(b) wave at a car and get into it. PO Lloyd is familiar with § 87(2)(b) he has had numerous prior interactions with her and has arrested her previously for prostitution. The car that § 87(2)(b) got into pulled off the curb without signaling and PO Lloyd then made the decision to stop the vehicle. PO Lloyd noted that his partner at the time, PO Lee, was a substitute and is not familiar with the area, so PO Lloyd was primarily making all the decisions. When § 87(2)(b) asked why he had been stopped, PO Lloyd explained that § 87(2)(b) had not signaled and asked him questions about § 87(2)(b) (BR 06).

According to PO Lee, he and PO Lloyd were doing a canvass in PO Lloyd's sector, which is a known prostitution location. They observed a female getting into a car. PO Lloyd informed PO Lee of the information that this area was known for prostitution. PO Lee was not sure if PO Lloyd was familiar with the female who entered the car. PO Lloyd then made the decision to pull the car over. To PO Lee's knowledge the only reason for the car stop was seeing the female enter the car. The car was then pulled over using lights and sirens (BR 07).

§ 87(2)(b)
§ 87(2)(b)
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§ 87(2)(b)

Officers can stop motorists observed committing traffic violations as a pretext to investigate more serious crimes. See Whren v. United States, 517 U.S. 806 (1996); People v. Robinson, 97 N.Y.2d 341 (2001) (BR 09)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: Police Officer Terrance Lloyd searched § 87(2)(b)

According to § 87(2)(b) after PO Lloyd had him exit his vehicle, he asked § 87(2)(b) if he had anything in his pockets. § 87(2)(b) told him yes and PO Lloyd instructed him to empty his pockets. § 87(2)(b) stated that he removed his asthma pump, a pen, and his keys out of his right side jacket pocket.

According to PO Lloyd, when he approached § 87(2)(b)'s vehicle, § 87(2)(b)'s pants were unzipped and his penis was exposed. PO Lloyd spoke with § 87(2)(b) for about a minute and then spoke with § 87(2)(b) who confirmed to PO Lloyd that § 87(2)(b) had picked her up to solicit her services and informed him that they had been drinking in the car, she removed a Heineken bottle from her purse and told PO Lloyd § 87(2)(b) had a foam cup with alcohol in it. PO Lloyd stated that he then had § 87(2)(b) exit the vehicle and § 87(2)(b) was having trouble locating his ID, checking through his pockets for it. § 87(2)(b) emptied his pockets looking for the ID, he removed some dirty tissues, a metro card, and a wallet that did not have his ID in it. § 87(2)(b) told PO Lloyd that he could not find his ID and PO Lloyd informed him he would have to take him back to the stationhouse to determine who he was. § 87(2)(b) then told PO Lloyd his ID was in his back pocket. PO Lloyd handcuffed § 87(2)(b) for safety and then went in § 87(2)(b)'s pocket to retrieve the ID, this was the only pocket he went into. Later in his CCRB, PO Lloyd stated that the reason that he handcuffed § 87(2)(b) was because § 87(2)(b) kept fidgeting and going into his pockets after the ID had already been retrieved and was ignoring commands to stop doing that. PO Lloyd then stated that he could not recall the exact time of when he handcuffed § 87(2)(b).

PO Lee did not recall if PO Lloyd ever asked § 87(2)(b) to empty his pockets and did not see PO Lloyd go into § 87(2)(b)'s pockets.

§ 87(2)(g)

In instances where an individual has only been issued a summons, officers are not permitted to search the individual absent additional factors. *People v. Reid*, 24 N.Y.3d 615 (2014). (BR 10)

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegation B** be closed as **exonerated**.

Allegation C – Abuse of Authority: Police Officer Terrance Lloyd frisked § 87(2)(b)

§ 87(2)(b)

stated that he was not patted down during his interaction with PO Lloyd.

PO Lloyd stated that he patted down § 87(2)(b) to check for any weapons and he could not recall if § 87(2)(b) was handcuffed during this time. PO Lloyd did not suspect § 87(2)(b) of having a weapon, but based on his behavior of searching through his pockets, he decided to pat him down.

PO Lee did not recall PO Lloyd patting down § 87(2)(b)

An officer must have reasonable suspicion that a suspect is armed to conduct a frisk. *People v. DeBour*, 40 N.Y.2d 210 (N.Y.S. Ct. Of Appeals 1976) (BR 11) In instances where an individual has only been issued a summons, officers are not permitted to search the individual absent additional factors. *People v. Reid*, 24 N.Y.3d 615 (2014). (BR 10)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **substantiated**.

Squad: 14

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date